

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENT, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM A-1 AND MU (COUNTY) TO CB COMMUNITY BUSINESS FOR A PARCEL OF LAND SITUATED IN A PORTION OF THE SOUTH HALF OF SECTION 20, T.14N., R.66W., 6TH P.M., CHEYENNE, WYOMING, TO BE KNOWN AS LOTS 1 AND 2, BLOCK 1, TERRE PONT (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF FRONTIER MALL DRIVE AND PRAIRIE AVENUE).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on August 5, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a portion of the south half of Section 20, T.14N, R.66W, 6th P.M., Cheyenne, Wyoming, to be known as Lots 1 and 2, Block 1, Terre Pont, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated Terre Pont Annexation and Final Plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

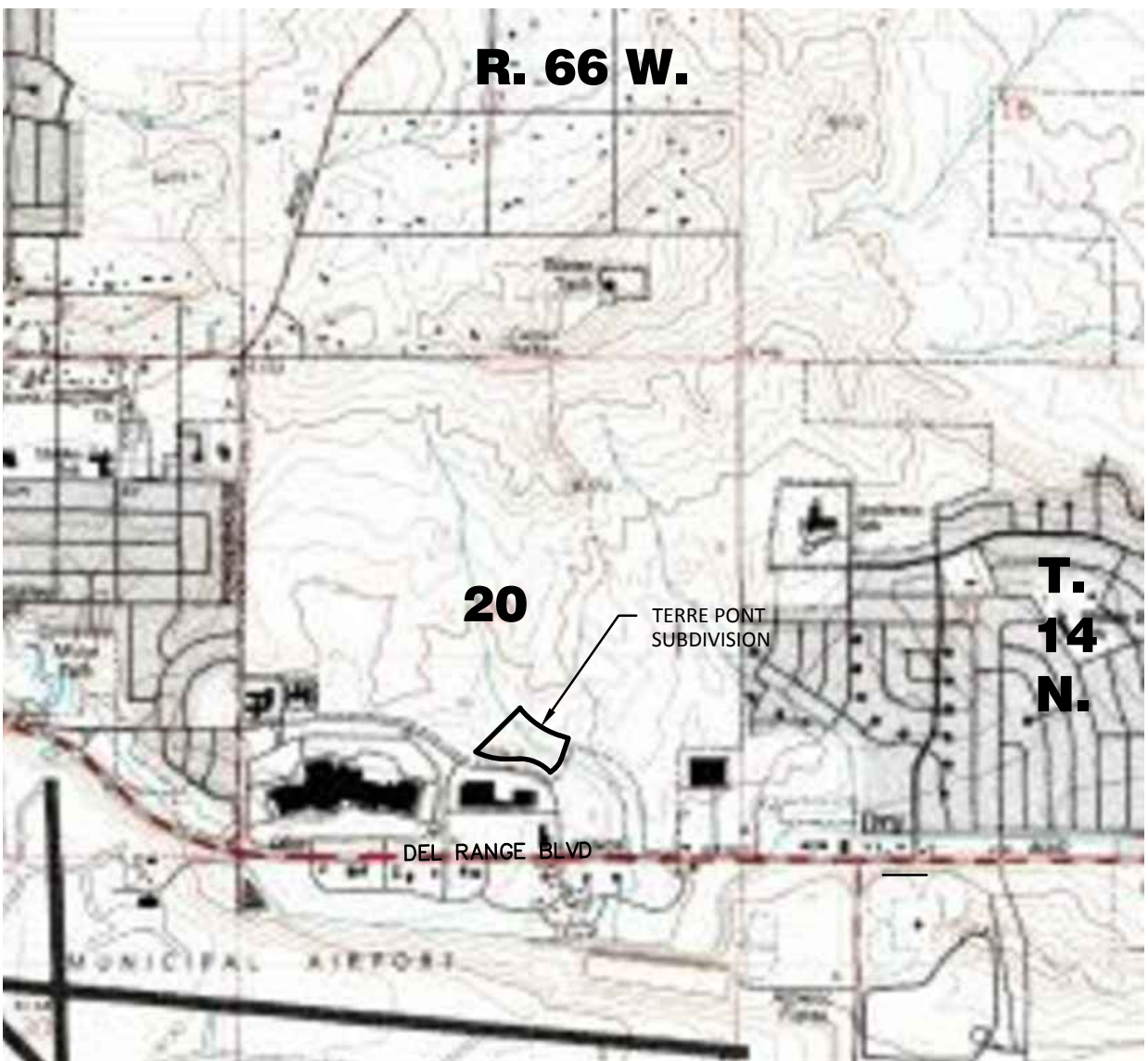
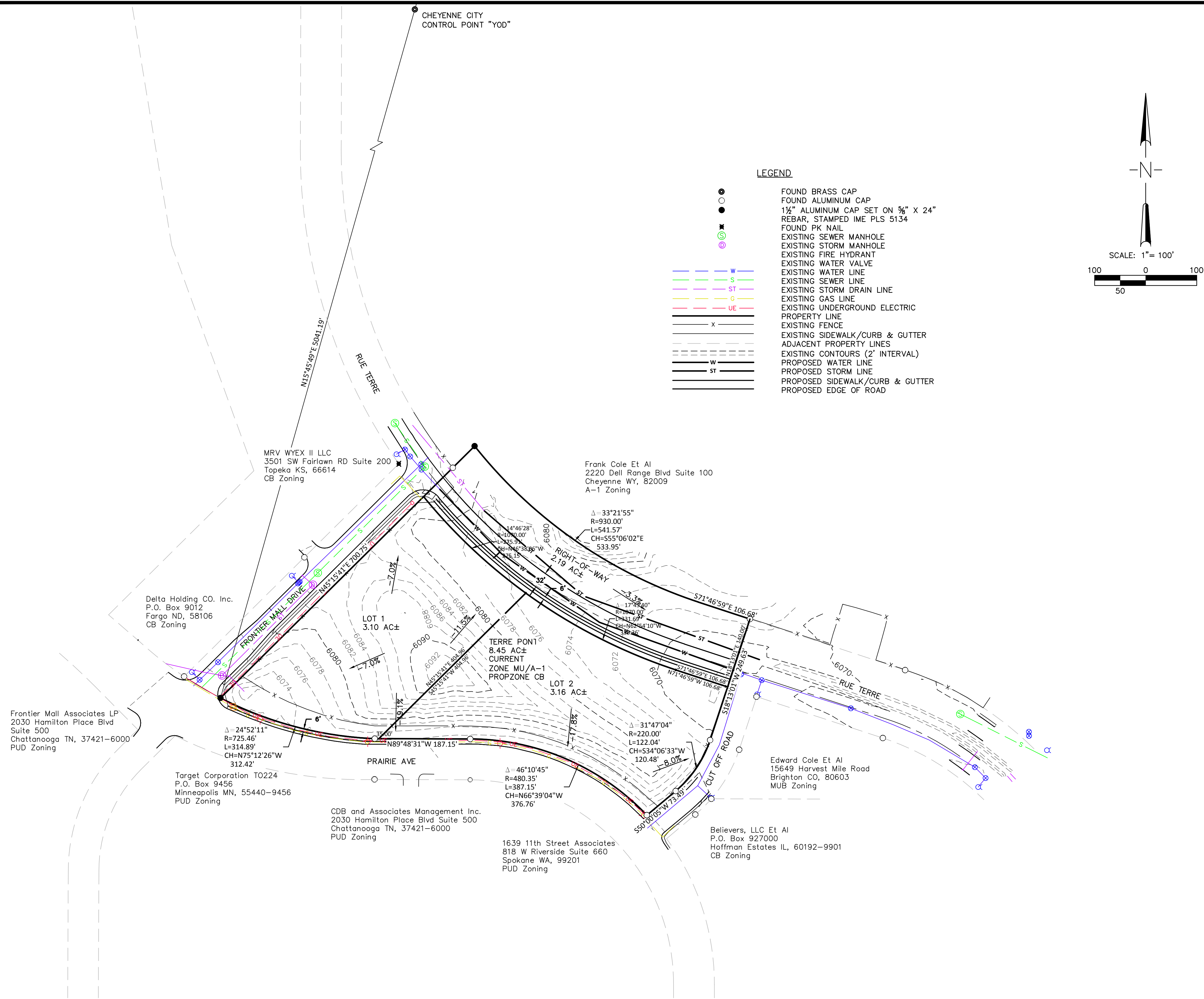
THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____



VICINITY MAP
1" = 2000'

- NOTE:
- LANDS WITHIN THIS PLAT AREA ARE NOT SUBJECT TO FLOODING ACCORDING TO THE AVERAGE FREQUENCY OF THE FIFTY-YEAR AND ONE HUNDRED-YEAR FLOOD PLANS.
 - OPEN SPACE TO MEET REQUIREMENTS OF UDC TABLE 4-15 WILL BE DETERMINED ON SITE PLAN.
 - NO RECORDED EASEMENTS OR RESTRICTIONS ASSOCIATED WITH THIS PARCEL.
 - THE UTILITY LOCATIONS SHOWN ARE AS MARKED BY THEIR OWNERS, FROM THE OWNERS RECORDS OR FROM FIELD EVIDENCE. THE SIZE AND LOCATION OF UNDERGROUND UTILITIES WAS NOT VERIFIED BY EXCAVATION. THE CONTRACTOR IS RESPONSIBLE FOR LOCATING AND PROTECTING UTILITIES DURING CONSTRUCTION.

SUBDIVIDERS:
TKO
P.O. Box 15
Aberdeen, South Dakota 57402
605-229-0030

PRELIMINARY PLAT OF TERRE PONT

LOCATED IN THE
S 1/2 SEC 20,
T. 14 N., R. 66 W., 6th P.M.
LARAMIE COUNTY, WYOMING

INBERG-MILLER ENGINEERS
124 EAST MAIN STREET
RIVERTON, WYOMING
DRAWN BY MDH
82501
DATE: 06/24/2013 BOOK 16446-HS
FILE: \\16446-HS PLAT.DWG

Terre Pont Annexation, Preliminary Plat, and Zone Change



1 inch = 0.02 miles

PROJECT NUMBERS:

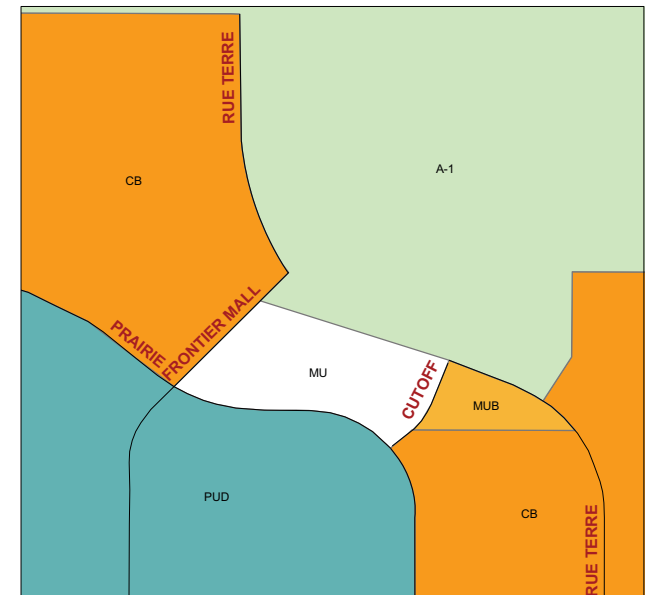
ANNEXATION: UDC-13-00270

PRELIM. PLAT: UDC-13-00271

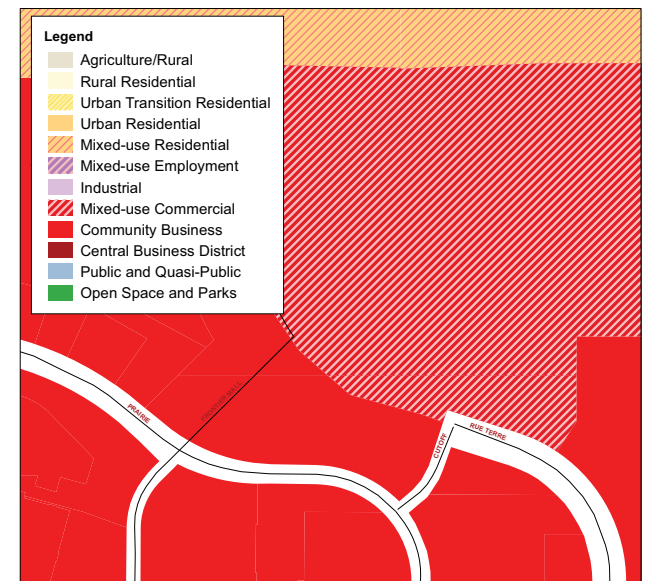
ZONE CHANGE: UDC-13-00272



THIS MAP IS MADE POSSIBLE THROUGH THE CHEYENNE AND LARAMIE COUNTY COOPERATIVE GIS (CLCCGIS) PROGRAM AND IS FOR DISPLAY PURPOSES ONLY. THE CLCCGIS INVOKES ITS SOVEREIGN AND GOVERNMENTAL IMMUNITY IN ALLOWING ACCESS TO OR USE OF THIS DATA, MAKES NO WARRANTIES AS TO THE VALIDITY, AND ASSUMES NO LIABILITY ASSOCIATED WITH THE USE OR MISUSE OF THIS INFORMATION.



Current Zoning



PlanCheyenne Future Land Use



STAFF REPORT

Terre Pont Summation

Preliminary Plat Process

CASE NUMBER: UDC-13-00271

FILE CODE: TERP-P

PREPARED BY: Jim Flesher

MEETING DATES: **Planning Commission:** August 5, 2013

City Council: August 12, 2013 (referral to Public Services Committee)

Required documents submission:

All required documents have been submitted and reviewed by staff.

- Complete Application
- Preliminary Plat Map
- Transportation Worksheet
- Transportation Network Letter
- Drainage Study
- Environmental Impact Assessment

RECOMMENDATION: The Planning and Development Office recommends acknowledgement of the Terre Pont Preliminary Plat pursuant to the criteria in Section 2.1.2.d of the Cheyenne Unified Development Code.

Staff Update (8/6/13): At its regular meeting Monday, August 5, 2013, the Cheyenne Planning Commission voted unanimously to recommend approval of the above described preliminary plat.

STAFF REPORT

Terre Pont

Preliminary Plat Process

CASE NUMBER: UDC-13-00271 **FILE CODE:** TERP-P

PREPARED BY: Jim Flesher

MEETING DATES: **Planning Commission:** August 5, 2013
City Council: August 12, 2013 (referral to Public Services Committee)

SUBMITTED: July 2, 2013

OWNER: Edward George Cole, et al (303) 659-7262
15649 Harvest Mile Rd
Brighton, CO 80603

APPLICANT /AGENT: Mark Butler (307) 635-6827
Inberg-Miller Engineers
350 Parsley Blvd
Cheyenne, WY 82007

PROJECT: Terre Pont

WORK DESCRIPTION: Platting two lots for commercial development and adjacent right-of-way

LOCATION:

1) Legal Description: Portion of Section 20, T.14N., R.66W., 6th P.M., Laramie County, Wyoming

2) General Location: Northeast corner of Prairie Avenue and Frontier Mall Drive

3) Address: Vacant land

SIZE: 8.45 acres (2.19 acres of right-of-way)

CURRENT ZONING: A-1, Agriculture and Rural Residential & MU, Mixed Use (County)

PROPOSED ZONING: CB, Community Business

EXISTING LAND USE: Vacant land

PROPOSED LAND USE: Hotel and future commercial development

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Vacant	A-1	County
South	Retail	PUD	City
East	Vacant	A-1, MUB	City, County
West	Retail	CB	City

PLAT ANALYSIS SUMMARY:

The plat appears to be in compliance with all applicable requirements of the Unified Development Code. Staff recommends approval of the Preliminary Plat based on the criteria in UDC §2.1.2.d.

DESCRIPTION OF SITE AND SURROUNDINGS:

The subject property is approximately 8.45 acres of vacant land northeast of and adjacent to Frontier Mall Drive and Prairie Avenue. On the east side of the property is the platted but unbuilt Cutoff Road. The land raises several feet from Prairie Avenue, then slopes back down to where Rue Terre aligns. Frontier Mall Drive is fully constructed including the sidewalk. Prairie Avenue is built, but the sidewalk will need to be constructed as the property develops. Rue Terre and Cutoff Road are not constructed.



Looking northwest on Prairie Avenue. Subject property on right.

PROJECT DATA:

This plat proposes two lots; Lot 1 on the west being 3.1 acres and Lot 2 being 3.16 acres. One hundred forty feet of right-of-way, or 2.19 acres, will be dedicated to extend Rue Terre. Right-of-way for Cutoff Road is in place. Lot 1 is proposed for development of an extended-stay hotel. Rue Terre adjacent to the subdivision will be constructed with development of the hotel, leaving an unconstructed section between where Cutoff Road is platted and the existing Rue Terre to the southeast, north of K-Mart and a vacant lot behind K-Mart (Lot 2, Block 1, Terre Fini Subdivision).

At first, both lanes on Rue Terre will use the south half of the right-of-way, the same as it is north of Frontier Mall Drive behind the shopping center there. The other half of the road will be constructed with future development to the north. Please the aerial map below for clarification.



A concurrent zone change application proposes to rezone the property from MUB and A-1 (County) to CB (City). An annexation is in process as well and will need to be complete before platting and zoning take effect.

PLAT ANALYSIS:

Review of a preliminary plat is organized by analysis of the review criteria described in Preliminary Plat Review Criteria outlined in Article 2, Section 2.1.2d. The purpose of these review criteria is to provide a consistent review and discussion for preliminary plat applications.

1 || Policies | Physical Patterns | Comprehensive Plan - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

Generally the proposal appears to be consistent with PlanCheyenne. The property is within the Urban Service Boundary. The Future Land Use Plan map in PlanCheyenne indicates Community Business for

this property, which is primarily appropriate for general retail and office uses. Secondary uses may include multifamily housing (apartments). Hotels and motels are a permitted use in the CB zone district.

2 || Existing & Future Development - *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

This criteria appears to be met to the extent applicable. The property is in a problematic area concerning transportation due to lack of connectivity. Rue Terre extends from the south at Dell Range then ends north of K-Mart to the east of the subject property. To the north of the subject property Rue Terre curves north and the west half of the road is constructed behind the shopping center there (Frontier North) and ends at the north property line of the shopping center. The east half has not been platted or annexed in that area. Building half of the road width is not a major concern, but connecting Rue Terre through to the south would be preferable since it would increase connectivity and address the need sooner rather than later. With an unconstructed gap, some motorists will use it anyway, as can be seen with Cutoff Road. This will increase pressure on the City to install the road.

3 || Subdivision Standards - *The division of land meets the purposes, intent, and all applicable standards in Article 4.*

Article 4, Subdivision Regulations provides standards for coordinating development across different areas and over time. It addresses development patterns and includes planning, design, and engineering standards for systems that coordinate development across large areas, including open space, transportation, and utilities. It is most useful to anyone considering dividing land and public officials that review development applications in relation to long-range plans and impacts.

4.2 Community Facilities and Fees

The final plat will require payment of park fees as outlined below (subject to change).

Land Acquisition Fee (PAI)	\$350 x	6.3 acres	=	\$2,205
Infrastructure Fee (PAI)	\$350 x	6.3 acres	=	<u>\$2,205</u>
TOTAL DUE W/ PLAT				\$4,410
Park Enhancement Fees (PEA) (due at building permit)	\$1,110 x	6.3 acres	=	<u>\$6,930</u>
TOTAL COMMUNITY FACILITY FEES				\$11,340

4.3 Transportation Networks and Street Designs

The proposed development complies with the long-range transportation plan, maximum block perimeter, and maximum and minimum block face lengths. The location of the streets surrounding the subject property is generally established already. As mentioned previously, sidewalks will need to be installed where they do not currently exist. The main issue with this project is the timing of the extension of Rue Terre to the south to where it currently ends behind K-Mart. As proposed, that section of Rue Terre would be constructed when the adjacent vacant lot (Lot 2, Block 1, Terre Fini) develops. However, this 1.4-acre lot has a triangular shape and has limited development potential due to its size and shape, having been platted 23 ago. Current UDC regulations are intended to prevent this type of problem, but this lot was platted in 1990 and options to correct it are now limited. The Terre Fini property is owned by the current owner of the subject property.



Looking north at Lot 2, Block 1, Terre Fini north of K-Mart.



Looking southeast from where Rue Terre ends northwest of subject property at Frontier Mall Drive.
Subject property on right. Back of K-Mart in background.



Looking southeast at where Rue Terre ends north of K-Mart.



Looking south on Cutoff Road, east of subject property.

4.4 Open Space Systems

Open space equivalent to eight percent of the area of the building footprint will be required on-site, which will be private open space. This requirement will be evaluated during the site plan review.

4 || Phasing Amenities, Facilities - *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

No development is proposed for Lot 2 at this time, but street improvements will be made to Rue Terre adjacent to both lots. As mentioned, there will still be a gap southeast of the subject property north of the Terre Fini lot. As noted in comments below from Engineering, this gap will create pressure on the City to absorb the cost and construct the remaining portion of Rue Terre in this area. Since the City has not established impact fees on development for off-site street improvements, any such construction by the City would be paid for by all taxpayers rather than the development. This conflicts with PlanCheyenne Foundation 7, which promotes development paying for improvements necessitated by the development. However, whether the City or the developer pays for the improvements, a reimbursement requirement could be filed against the adjacent properties so that when they develop they will be required to pay their share of the improvements.

When development north of Rue Terre occurs Rue Terre will need to be widened to the full width.

No improvements to Cutoff Road are proposed with development of the hotel.

5 || Studies and Reports - *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

A Traffic Impact Study will be required prior to approval of a site plan. Drainage improvements include extension of an existing stormwater line along Rue Terre. Further review will occur with site plan submittals when more detailed design plans are submitted.

6 || Zoning - *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

Both lots appear to be developable with the proposed CB zoning.

7 || Adjacent Development - *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

The properties to the south and west are already similarly developed. The proposed development should have a positive effect on adjacent vacant land by extending water and sewer lines and street improvements.

8 || Health Safety and Welfare - *The application is not harmful to the public health, safety, and welfare.*

Development will be required to meet all applicable requirements regarding engineering, building construction, fire access and hydrants, and food safety, among others.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS:

Board of Public Utilities:

1. The property Owners will be required to extend the sanitary sewer utilities from its current location to the farthest point (or points) of the property being annexed along Rue Terre. The exiting 8" water main on the west end of Rue Terre will need to be extended from its current location to tie into the exiting 12" water on the east end of Rue Terre to complete the water main loop. These utility extensions shall be to a point (or points) that are logical for projected future connections to future development projects, as determined by the BOPU and the property owners/developer.
2. All BOPU's water/sewer utilities shall be located in the City of Cheyenne Street Right-of-Ways or have the appropriate easements record at the Clerk of Laramie County Real Estate Office or easements shown on the recorded plat. All water and sanitary sewer utilities need to be designed and constructed in accordance with the latest City of Cheyenne and Board of Public Utilities Construction Specifications Standards and Standard Drawings and the latest Rules & Regulations for Establishing Policies & Design Criteria of the Board of Public Utilities Cheyenne, Wyoming.

City Surveyor: (Note: These comments will be addressed on the final plat. The preliminary plat is not a recorded document.)

1. Boundary data appears in order for mathematical closure.
2. A symbol for the SET REBAR W/ALUMINUM CAP called for in the LEGAL DESCRIPTION at the easterly end of the curve on the northerly boundary is not shown, and is required. Also, the LEGEND needs to have a symbol and description for these set corners.
3. There are two minor discrepancies between the map data shown and the calls in the LEGAL DESCRIPTION. FIRST: the distance for the northwesterly boundary course calls for a distance of 700.75' on the map, but calls for 700.76' in the LEGAL DESCRIPTION; SECOND: the distance for the long chord of the curve along the easterly boundary calls for 120.48' on the map, but calls for 120.49' in the LEGAL DESCRIPTION. These discrepancies are required to be rectified.
4. City Code 1.12.020 - C.1 - 3 requires that two (2) City Control Stations be used for survey ties to the City Control Ground Datum. Only one (1) City Control Station "YOD" is shown on this plat. The second station used, must be shown and identified. Also, the published City Ground Datum coordinates for these Control Stations must be provided as well.
5. City Code 1.12.020 - C.1 - 3 also requires that two (2) monumented corners of one course of the boundary also have the City Ground Datum coordinates provided. The corner tied to the Control Stations and the monument on the other end of the first course, generally. If copy of the City Code is required, please contact us.
6. There is no right of way width provided on the westerly end of Rue Terre, so it is an assumption that the width is uniform at 140'. The planned dimension is to be provided at said westerly end of said Rue Terre for this plat.
7. What are the adjacent right of way dimensions for Rue Terre, Frontier Mall Drive, Prairie Ave, and Cutoff Road?

Development:

1. Note the EIS discusses the benefits of the Rue Terre connection which would be true however the developer of the Hotel will not be connecting Rue Terre to the existing Rue Terre.

Identification of open space on the plat is not required. Any required open space/landscaping will be reviewed with the site plan

Engineering, Drainage:

1. Please submit supporting information for all calculations, including (but not limited to): preliminary site plan exhibit used to determine impervious surfaces (calculations submitted indicate the site will be less than 42% impervious), graphics showing flow paths used for Time of Concentrations (Tc), all Tc calculations, all Rational Method calculations, and all detention calculations.
2. The design of the extension of the storm sewer system in Rue Terre will need to show the City criteria are being met. This design will also need to provide for offsite runoff to get into the system.

Engineering, General:

1. When constructed, this project will leave approximately 460 feet of Rue Terre unconstructed behind K-Mart. This stretch will probably be difficult to keep from becoming an unofficial road between the two constructed sections. This may result in the City having to incur some expense to construct the missing piece.

Engineering, Traffic: (Note: Several additional comments regarding the forthcoming site plan were provided to the applicant.)

1. A Transportation Worksheet to determine TIA/TIS requirements was provided as required (ref. Article 3, section 3.1.1.c., UDC). The Transportation Worksheet was signed as required. The number of trips generated appears to be more than the threshold amount which would trigger a TIA or a TIS, therefore a Transportation Impact Study for this project will be required.
2. All Arterial and Collector streets shall be connected and extended to the boundary of the site (ref. Article 4, Section 4.3.3.f., UDC).

Environmental Health:

1. Cheyenne-Laramie County Food Rule WY Regulations for Swimming Pools, Spas and Similar Installations. Any food service or pool/spa shall submit plans directly to this office at least thirty days prior to the start of construction. A Wyoming Food Service license shall be obtained prior to selling or giving away any food. A Wyoming Pool/spa license shall be obtained prior to opening any pool/spa for use.

Fire:

1. Extend water mains and fire hydrant placement to comply with the 2006 International Fire Code, Appendix "C".

Charter Communications (formerly Optimum):

1. Charter communications has fiber optics in the road ROW at the northwest corner of the intersection of Prairie Ave and Cutoff Road. This fiber line crosses Prairie from the south to this corner then crosses Cutoff Road from this corner east to the 10' utility easement along the north property line of Lot 1, Block 1 of Terre Fini, 2nd Filing.

Parks & Recreation:

1. Disagree with the determination of "0" bicyclists and pedestrians in the TIS.
2. Do not preclude future provision of a direct traffic connection from Prairie to Rue Terre through Lot 2.

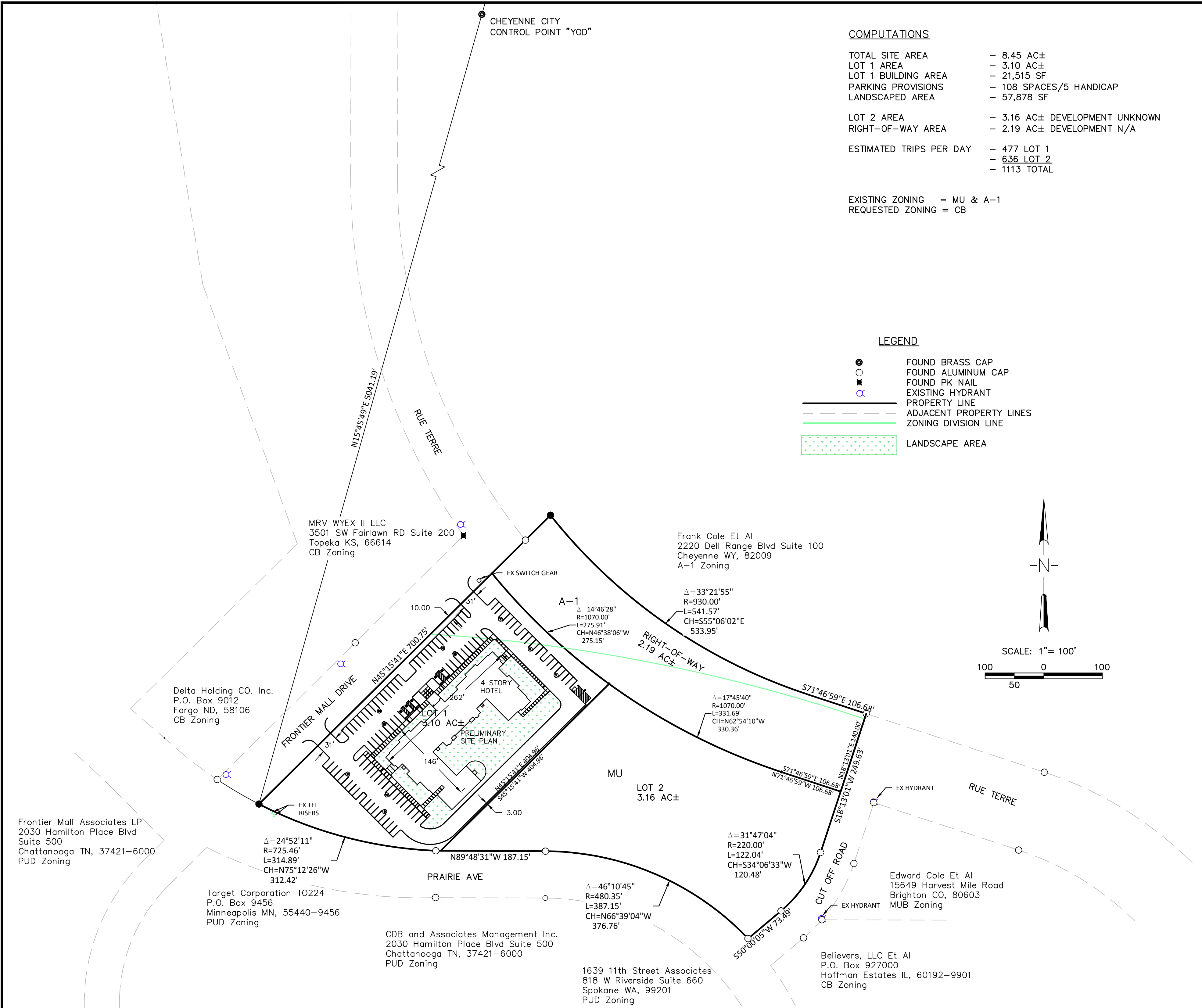
Reviewing Agencies with No Comment: Engineering Tech/GIS, MPO

Reviewing Agencies Not Responding: CenturyLink, Cheyenne Light, Fuel & Power, City Engineer

Other Comments Received: None

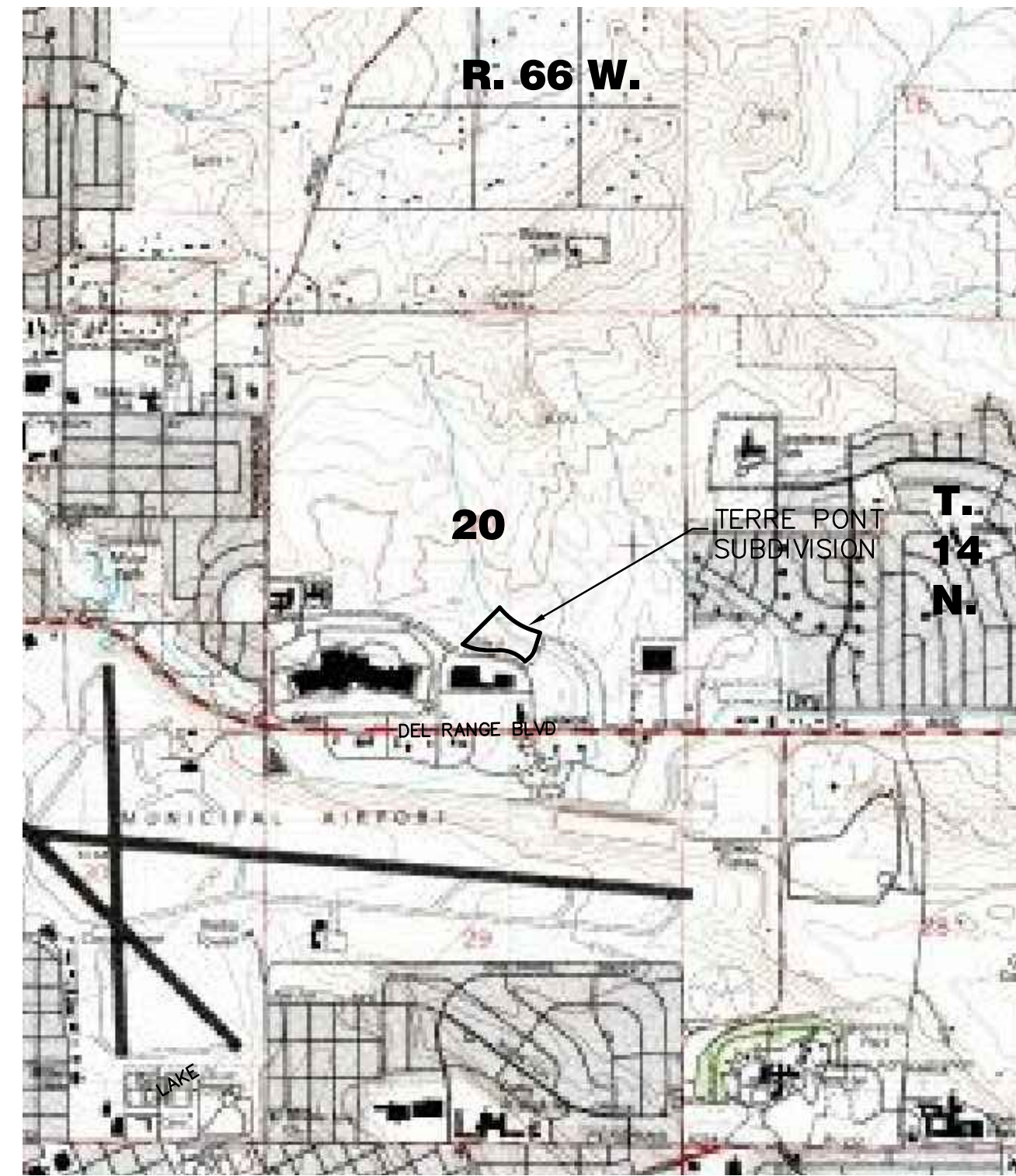
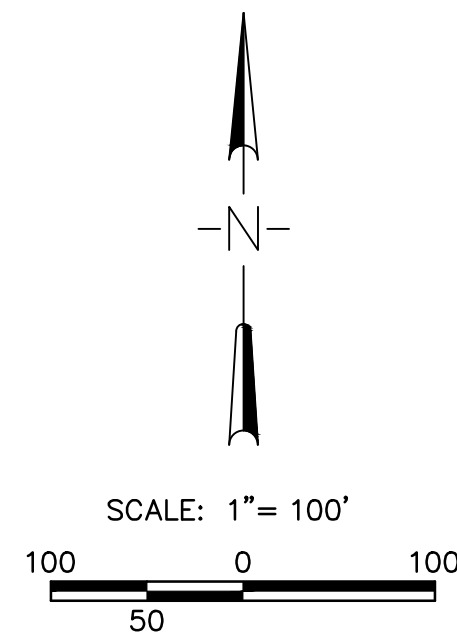
Encl: Preliminary Plat Map
Aerial Photo Exhibit

cc: Agent/Applicant
File



COMPUTATIONS	
TOTAL SITE AREA	- 8.45 AC±
LOT 1 AREA	- 3.10 AC±
LOT 1 BUILDING AREA	- 21,515 SF
PARKING PROVISIONS	- 108 SPACES/5 HANDICAP
LANDSCAPED AREA	- 57,878 SF
LOT 2 AREA	- 3.16 AC± DEVELOPMENT UNKNOWN
RIGHT-OF-WAY AREA	- 2.19 AC± DEVELOPMENT N/A
ESTIMATED TRIPS PER DAY	- 477 LOT 1
	- 636 LOT 2
	- 1113 TOTAL
EXISTING ZONING = MU & A-1	
REQUESTED ZONING = CB	

LEGEND	
	FOUND BRASS CAP
	FOUND ALUMINUM CAP
	FOUND PK NAIL
	EXISTING HYDRANT
	PROPERTY LINE
	ADJACENT PROPERTY LINES
	ZONING DIVISION LINE
	LANDSCAPE AREA



VICINITY MAP
1" = 2000'

LEGAL DESCRIPTION

A parcel of land located in the South 1/2 Section 20, T.14N., R.66W., 6th P.M., City of Cheyenne, Laramie County, Wyoming, said parcel of land being more particularly described as follows:

BEGIN at the southeasterly corner of the Frontier North 2nd Filing, a subdivision plat recorded as Reception Number 469124 and filed in P/C 9, Slot 20 in the office of the Laramie County Clerk and Records office in Cheyenne, Wyoming, being a set rebar with 2 inch aluminum cap stamped IME, LS 5134; thence from said Point of Beginning, N45°15'41"E along the southeasterly line of said Frontier North 2nd Filing and its northeasterly extension, 700.76 feet (record azimuth 45°15'41") to a set rebar with 2 inch aluminum cap stamped IME, LS 5134; thence along an arc of a non-tangent curve concave to the northeast 541.57 feet, said curve having a radius of 930.00 feet and chord bearing S55°06'02"E, 533.95 feet to a set rebar with 2 inch aluminum cap stamped IME, LS 5134; thence S71°46'59"E, 106.68 feet to a found aluminum cap stamped at the northwesterly corner of Terre Fini, a subdivision plat recorded as Reception Number 074530 and filed in P/C 6, Slot 41, in said Clerk's office; thence along the westerly line of said Terre Fini the following three courses: thence S18°13'01"W, 249.63 feet (record azimuth 198°12'21", 249.63 feet) to a found aluminum cap stamped LS 2500; thence along an arc of a curve concave to the northwest 122.04 feet, said curve having a radius of 220.00 feet and chord bearing S34°06'33"W, 120.49 feet (record length of 122.04 feet and radius of 220.00 feet) to a found aluminum cap stamped LS 2500; and, thence S50°00'05"W, 73.49 feet (record azimuth 229°59'25", 73.31 feet) to intersect said northerly right-of-way line of Prairie Avenue at a found aluminum cap stamped LS 2500; thence along said northerly right-of-way line the following three courses: thence along an arc of a non-tangent curve concave to the southwest 387.15 feet, said curve having a radius of 480.35 feet and chord bearing of N66°39'04"W, 376.76 feet (record radius of 480.00 feet) to a found aluminum cap stamped LS 2500; thence N89°48'31"W, 187.15 feet (record azimuth 270°13'16", 187.18 feet) to a found aluminum cap stamped LS 2500; thence along an arc of a non-tangent curve concave to the northeast 314.89 feet, said curve having a radius of 725.46 feet and chord bearing N75°12'26"W, 312.42 feet, to the Point of Beginning of this parcel description, containing 368,132 square feet, or 8.45 acres of land, more or less, and subject to all easements, rights-of-way and restrictions of record.

APPROVALS

APPROVED BY THE CITY COUNCIL OF THE CITY OF
CHEYENNE THIS ____ DAY OF _____, 2013.

MAYOR CITY CLERK

ZONING MAP
OF
TERRE PONT

LOCATED IN THE
S1/2 SEC 20,
T. 14 N., R. 66 W., 6th P.M.
LARAMIE COUNTY, WYOMING

INBERG-MILLER ENGINEERS
124 EAST MAIN STREET
(307)856-8136 RIVERTON, WYOMING
DRAWN BY MDH 82501
DATE: 05/24/2013 16446-HS PLAT.DWG

STAFF REPORT

Terre Pont Summation

Zone Change Process

CASE NUMBER: UDC-13-00272 **FILE CODE:** TERP-Z
PREPARED BY: Jim Flesher
MEETING DATES: **Planning Commission:** August 5, 2013
City Council: August 12, 2013 (referral to Public Services Committee)

Required documents submission:

All required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change from **A-1 Agriculture & Rural Residential** and **MU Mixed Use** (County) to **CB Community Business** (City), pursuant to criteria outlined in Section 2.2.1.d of the Cheyenne UDC.

Staff Update (8/6/13): At its regular meeting Monday, August 5, 2013, the Cheyenne Planning Commission voted unanimously to recommend approval of the above described zone change.

STAFF REPORT

Terre Pont

Zone Change Process

CASE NUMBER: UDC-13-00272 **FILE CODE:** TERP-Z

PREPARED BY: Jim Flesher

MEETING DATES: **Planning Commission:** August 5, 2013
City Council: August 12, 2013 (referral to Public Services Committee)

SUBMITTED: July 2, 2013

OWNER: Edward George Cole, et al (303) 659-7262
15649 Harvest Mile Rd
Brighton, CO 80603

APPLICANT /AGENT: Mark Butler (307) 635-6827
Inberg-Miller Engineers
350 Parsley Blvd
Cheyenne, WY 82007

PROJECT: Terre Pont

WORK DESCRIPTION: Establishing City zoning concurrent with annexation and preliminary plat

LOCATION:

- 1) Legal Description: Portion of Section 20, T.14N., R.66W., 6th P.M., Laramie County, WY
- 2) General Location: Northeast corner of Prairie Avenue and Frontier Mall Drive
- 3) Address: Vacant land

SIZE: 8.45 acres (2.19 acres of right-of-way)

CURRENT ZONING: A-1, Agriculture & Rural Residential, and MU, Mixed Use (County)

PROPOSED ZONING: CB, Community Business

EXISTING LAND USE: Vacant land

PROPOSED LAND USE: Hotel and future commercial development

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Vacant	A-1	County
South	Retail	PUD	City
East	Vacant	A-1, MUB	City, County
West	Retail	CB	City

ZONE CHANGE ANALYSIS SUMMARY:

The area is designated Community Business on the PlanCheyenne Future Land Use Plan map and the proposed zone change appears to comply with criteria outlined in Section 2.2.1.d of the Cheyenne UDC; therefore staff recommends approval of the zone change.

DESCRIPTION OF SITE AND SURROUNDINGS:

The subject property is approximately 8.45 acres of vacant land northeast of and adjacent to Frontier Mall Drive and Prairie Avenue. On the east side of the property is the platted but unbuilt Cutoff Road. The land raises several feet from Prairie Avenue, then slopes back down to where Rue Terre aligns. Frontier Mall Drive is fully constructed including the sidewalk. Prairie Avenue is built, but the sidewalk will need to be constructed as the property develops. Rue Terre and Cutoff Road are not constructed.



Looking northwest at subject property from south side of Prairie Avenue.

PROJECT DATA:

The property is currently zoned A-1, Agriculture & Rural Residential, and MU, Mixed Use, in the County. The proposed City zoning is CB, Community Business. Uses permitted by right in the CB zone include hotels and motels, medical clinics, office and retail uses, automotive service stations, and restaurants, among others.

A concurrent preliminary plat application proposes to subdivide the property into two lots. The west lot is proposed for development of an extended-stay hotel. No development on Lot 2 is proposed at this time.

Annexation is in process as well. Platting and zoning will not take effect prior to the annexation. Site plans and building permits will follow annexation, platting, and zoning and are administrative actions.

ZONE CHANGE ANALYSIS:

Zoning map amendments are reviewed in accordance with the criteria listed in 2.2.1.d of the UDC:

1 || Policies & Physical Patterns of PlanCheyenne - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

Generally the proposal appears to be consistent with PlanCheyenne. The property is within the Urban Service Boundary. The Future Land Use Plan map in PlanCheyenne indicates Community Business for this property, which is primarily appropriate for general retail and office uses. Secondary uses may include multifamily housing (apartments). Hotels and motels are a permitted use in the CB zone district.

2 || Neighboring Property - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

The properties to the south and west are already similarly developed. Across Frontier Mall Drive is a Buffalo Wild Wings restaurant and a retail center that includes Natural Grocers. To the south across Prairie Avenue is Petco and other big box retailers. The land to the north is unincorporated vacant land that will likely be developed as commercial or multifamily residential in the future after it is annexed. The proposed development should have a positive effect on adjacent vacant land by extending water and sewer lines and street improvements.

3 || Development Suitability - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

If the property is annexed into the City it will need City zoning prior to development. The subject property and proposed hotel are appropriate for the proposed CB zoning, which allows a variety of uses that are appropriate for the area.

4 || Subdivision Standards - *The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.*

The zone change application was submitted concurrently with the plat and the proposal appears to be able to be developed according to the applicable standards in Article 4.

5 || Intent and Applicability - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

According to Section 5.4.2.a of the UDC: “The CB District is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. The district regulations are designed to encourage these uses, while also protecting the abutting and nearby areas.” The development will need to conform to Chapter 6.9, General Commercial Design Standards, which will be reviewed on the subsequent site plans, and is intended to encourage quality site and building design and construction.

6 || Future Development - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

Whether the proposed hotel is built or not, the proposed CB zoning is appropriate for the property. As mentioned previously, other allowed uses include retail, restaurants, and office buildings, among others.

7 || Review - *The review and recommendations of other reviewing bodies.*

No comments were received on the zone change application.

8 || Public Health, Safety, & Welfare - *Whether the application will harm the public health, safety, or general welfare.*

Development will be required to meet all applicable requirements regarding engineering, building construction, fire access and hydrants, and food safety, among others.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS: None.

Reviewing Agencies with No Comment: City Attorney, Development, Engineering Tech/GIS, MPO

Reviewing Agencies Not Responding: City Engineer

Other Comments Received: None

Encl: Zone Change Map
Aerial Photo Exhibit

cc: Owner
Agent/Applicant
File